

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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ADONIS MONTALVO,

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER JERRY
GEORGE, Tax No. 954858, POLICE OFFICER
DHARLYN VASQUEZ, Tax No. 955625, SERGEANT
BRYAN ORTIZ, Tax No. 945272, SERGEANT
AYOTUNDE ADENIYI, Tax No. 934370, and POLICE
OFFICERS JOHN DOES # 1-4 (names and number of
whom are unknown at present), and other unidentified
members of the New York City Police Department,

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates BRONX
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 23, 2019

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: The City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER JERRY GEORGE, Tax No. 954858, 48th Precinct, 450 Cross Bronx
Expy, Bronx, NY 10457
POLICE OFFICER DHARLYN VASQUEZ, Tax No. 955625, 48th Precinct, 450 Cross
Bronx Expy, Bronx, NY 10457
SERGEANT BRYAN ORTIZ, Tax No. 945272, 48th Precinct, 450 Cross Bronx Expy,
Bronx, NY 10457
SERGEANT AYOTUNDE ADENIYI, Tax No. 934370, 48th Precinct, 450 Cross Bronx
Expy, Bronx, NY 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

ADONIS MONTALVO,

INDEX NO.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER JERRY
GEORGE, Tax No. 954858, POLICE OFFICER
DHARLYN VASQUEZ, Tax No. 955625, SERGEANT
BRYAN ORTIZ, Tax No. 945272, SERGEANT
AYOTUNDE ADENIYI, Tax No. 934370, and POLICE
OFFICERS JOHN DOES # 1-4 (names and number of
whom are unknown at present), and other unidentified
members of the New York City Police Department,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff ADONIS MONTALVO, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On May 28, 2018, at approximately 4:00 p.m., plaintiff Adonis Montalvo, while lawfully in the vicinity of 1915 Southern Boulevard, Bronx, New York, was subjected to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. Thereafter, plaintiff was subjected to an assault, battery and illegal strip search while he was inside of the 48th precinct. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, illegally stripped searched, assaulted and battered in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff ADONIS MONTALVO is a resident of the state of New York.

3. POLICE OFFICER JERRY GEORGE, Tax No. 954858, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER JERRY GEORGE, Tax No. 954858 is and was at all times relevant herein, assigned to the 48th Precinct.

5. POLICE OFFICER JERRY GEORGE, Tax No. 954858, is being sued in his individual and official capacity.

6. POLICE OFFICER DHARLYN VASQUEZ, Tax No. 955625, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. POLICE OFFICER DHARLYN VASQUEZ, Tax No. 955625 is and was at all times relevant herein, assigned to the 48th Precinct.

8. POLICE OFFICER DHARLYN VASQUEZ, Tax No. 955625, is being sued in his individual and official capacity.

9. SERGEANT BRYAN ORTIZ, Tax No. 945272, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. SERGEANT BRYAN ORTIZ, Tax No. 945272 is and was at all times relevant herein, assigned to the 48th Precinct.

11. SERGEANT BRYAN ORTIZ, Tax No. 945272, is being sued in his individual and official capacity.

12. SERGEANT AYOTUNDE ADENIYI, Tax No. 934370, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. SERGEANT AYOTUNDE ADENIYI, Tax No. 934370 is and was at all times relevant herein, assigned to the 48th Precinct.

14. SERGEANT AYOTUNDE ADENIYI, Tax No. 934370, is being sued in his individual and official capacity.

15. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

16. Police Officers John Does #1-4 are being sued in their individual and official capacities.

17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees

and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

18. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

19. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK.

20. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

21. A 50-h hearing was conducted on December 13, 2018.

22. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

23. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

24. On May 28, 2018, at approximately 4:00 p.m., plaintiff was lawfully in the vicinity of 1915 Southern Boulevard, Bronx, New York when the individually named defendant police officers unlawfully stopped, questioned, frisked, and searched plaintiff without reasonable suspicion or probable cause.

25. At no point in time had plaintiff committed any crime whatsoever.

26. Nevertheless, the defendant police officers unlawfully stopped, questioned, and frisked plaintiff without any reasonable suspicion or probable cause.

27. At no point in time did the defendant police officers recover any drugs, guns, or contraband of any kind from plaintiff.

28. Nevertheless, the defendant police officers forcibly handcuffed and unlawfully arrested plaintiff without legal justification or probable cause.

29. At no point in time did plaintiff resist arrest in any way.

30. Thereafter, plaintiff was unlawfully transported to the 48th precinct.

31. Upon arrival at the 48th precinct, plaintiff was fingerprinted, photographed and placed into a holding cell.

32. Thereafter, the defendant police officers conducted an invasive and unlawful strip search of plaintiff without reasonable suspicion or probable cause.

33. Specifically, plaintiff was forced to take off all of his clothes and shake each piece of clothing out.

34. Plaintiff was then ordered to turn around, and with his back facing the defendant police officers, plaintiff was forced to bend over and spread his buttocks and lift his genitals.

35. Notably, at no time did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from plaintiff.

36. On May 28, 2018, at approximately 10:00 p.m., after approximately 6 hours in custody, the defendant police officers voided plaintiff's arrest because he did not commit any crime and he was released from the 48th precinct without any charges.

37. Some of the individually named police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment, assault, battery, and unlawful strip search against plaintiff.

38. The unlawful stop, question, frisk, search, false arrest, false imprisonment, assault, battery and unlawful strip search against plaintiff by the individually named defendants caused plaintiff to sustain serious physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

39. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

40. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, and frisked, unlawfully seized, unlawfully stripped searched, falsely arrested, and falsely imprisoned, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States

and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

41. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

44. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

45. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

46. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

47. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

50. The conduct of defendants in stopping, frisking, and searching plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

51. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

52. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

54. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

57. Defendants lacked probable cause to search plaintiff.

58. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

59. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

60. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

61. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION**Assault**

62. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein.

63. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, that such acts caused apprehension of such contact in the plaintiff.

64. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

65. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

66. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

67. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION**Battery**

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

70. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

73. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

74. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein.

75. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

76. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Unlawful Strip Search

77. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 76 with the same force and effect as if more fully set forth at length herein.

78. Plaintiff was searched by defendants without an individualized reasonable suspicion that plaintiff was concealing weapons or other contraband based on a crime charged, the particular characteristics of the arrestee, and/or the circumstances of the arrest.

79. As a result of the foregoing, plaintiff's Constitutional rights were deprived and he sustained great emotional injuries.

80. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the United States Constitution and the State of New York.

81. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Failure to Intervene

82. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 81 with the same force and effect as if more fully set forth at length herein.

83. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

84. Defendants failed to intervene to prevent the unlawful conduct described herein.

85. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

86. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

88. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

89. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

90. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Adonis Montalvo demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 23, 2019

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
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TO: The City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER JERRY GEORGE, Tax No. 954858, 48th Precinct, 450 Cross Bronx
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Bronx, NY 10457
SERGEANT AYOTUNDE ADENIYI, Tax No. 934370, 48th Precinct, 450 Cross Bronx
Expy, Bronx, NY 10457

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
August 23, 2019

/s/
STUART E. JACOBS